

XVII.
Proviso as to
Inhabitants of last-
mentioned Counties,
and Places having
Lands, &c. of £20
yearly Value in
other Counties
or Places.

PROVIDED alwaies neverthelesse And be it further enacted by the authority aforesaid that all and every Resiant and Inhabitant of and within the said respective Counties Townes and Boroughs and Places last before mentioned which now hath any Mannors Lands Tenements or Hereditaments of the full and cleere yearly value of twenty pounds and upwards within any the other County or Counties place or places within the Kingdome of England or Dominion of Wales shall be rated and taxed according to his or theire respective rank degree and quality as if he or shee were not Resiant or Inhabitant of or within the said respective Counties Boroughs or places hereby formerly excepted Any thing herein to the contrary thereof in any wise notwithstanding.

XVIII.
Proviso for
Inhabitants of
County and City
of York, Hull, and
Carlisle, who have
had Soldiers
billeted on them.

PROVIDED likewise That this Act shall not extend to charge any person or persons inhabiting in the County of Yorke the City and County of the City of Yorke the Town of Hull and County of the same and the City of Carlisle upon whom Souldiers are or have beene lately billeted and to whom money for the said Billet is still owing and who are not by this Act charged with the payment of above one shilling but that every such person shall be hereby quitted and discharged from the said Payment

XIX.
Proviso against
Double Charges.

PROVIDED that no person of what degree rank or quality soever shall be doubly charged by this Act (except Papists Recusants who are to pay double as by this Act is appointed) but that every such person shall pay the greatest proportion he or shee is charged with by this Act And every such person as by this Act is appointed to pay any sum or sums of money according to the rate and with reference to the said last Bill of four Subsidies shall pay the said sum or sums of money according to the highest rate was set upon him or her by vertue of the said Act in any one place and shall be discharged from any other rates by such Certificate as by the said Act is appointed

Discharge by
Certificate.

XX.
Rates on Peers
to be paid to a
Collector appointed
by the Peers :
his Duty.

[PROVIDED alwaies And be it hereby declared and enacted That the severall sums rated and taxed upon the Lords shall be received by a Collector to be nominated by the Peers which Collector so appointed by the Peeres shall dispose of the said sums to such persons respectively and such uses and purposes as by this Act is appointed.¹]

CHAPTER X.

Rot. Parl. 16 Car.
p. 2. nu. 6.

Magna Charta,
9 H. III. c. 29.

5 E. III. c. 9.

25 E. III. st. 5. c. 4.

28 E. III. c. 3.

42 E. III. c. 3.

36 E. III. c. 15.

3 H. VII. c. 1. § 1.

21 H. VIII. c. 20.

All Matters
examinable in the
Star Chamber may
be examinable and
redressed by the
Common Law.

AN ACT for [the Regulating²] the Privie Councell and for taking away the Court commonly called the Star Chamber.

WHEREAS by the Great Charter many times confirmed in Parliament It is Enacted That no Freeman shall be taken or imprisoned or disseised of his Freehold or Liberties or Free Customes or be Outlawed or exiled or otherwise destroyed and that the King will not passe upon him or condemn him but by lawfull Judgement of his Peers or by the Law of the Land And by another Statute made in the fifth yeare of the Reigne of King Edward the Third It is Enacted That no Man shall be attached by any accusation nor fore judged of Life or [Lim³] nor his Lands Tenements Goods nor Chattels seised into the Kings hands against the forme of the Great Charter and the Law of the Land And by another Statute made in the five and twentieth yeare of the Reigne of the same King Edward the Third It is accorded assented and established That none shall be taken by petition or suggestion made to the King or to his Councell unlesse it be by Indictment or Presentment of good and lawfull People of the same Neighbourhood where such deeds be done in due manner or by Processe made by Writ Originall at the Common Law and that none be put out of his Franchise or Freehold unlesse he bee duly brought in to answer and forejudged of the same by the course of [the⁴] Law and if any thing be done against the same it shall be redressed and holden for none And by another Statute made in the eight and twentieth yeare of the Reigne of the same King Edward the Third It is amongst other things Enacted That no Man of what Estate or condition soever he be shall be put out of his Lands or Tenements nor taken nor imprisoned nor disinherited without being brought in to answer by due Processe of Law And by another Statute made in the two and fourtieth yeare of the Reigne of the said King Edward the Third It is enacted That no Man be put to answer without presentment before Justices or matter of Record or by due Processe and Writ Originall according to the old Law of the Land and if any thing be done to the contrary it shall be void in Law and holden for error And by another Statute made in the six and thirtieth yeare of the same King Edward the Third It is amongst other things Enacted That all Pleas which shall be pleaded in any Courts before any the Kings Justices or in his other places or before any of his other Ministers or in the Courts and places of any other Lords within the Realm shall be entered and inrolled in Latine And whereas by the Statute made in the third yeare of King Henry the seaventh power is given to the Chancellour the Lord Treasurer of England for the time being and the Keeper of the Kings Privie Seale or two of them calling unto them a Bishop and a Temporall Lord of the Kings most honourable Councell and the two chiefe Justices of the Kings Bench and Common Pleas for the time being or other two Justices in their absence to proceed as in that Act is expressed for the punishment of some particular offences therein mentioned And by the Statute made in the one and twentieth yeare of King Henry the eighth The President of the Councell is associated to joyne with the Lord Chancellour and other Judges in the said Statute of the third of Henry the seaventh mentioned But the said Judges have not kept themselves to the points limited by the said Statute but have undertaken to punish where no Law doth warrant and to make Decrees for things having no such authoritie and to inflict heavier punishments then by any Law is warranted And forasmuch as all matters examinable or determinable before the said Judges or in the Court commonly called the Star Chamber may have their proper remedy and redresse and their due punishment and correction by the Common Law of the Land and in the ordinary course of Justice elsewhere And forasmuch

¹ annexed to the Original Act in a separate Schedule.

² regulating of O.

³ Lymne O.

⁴ interlined on the Roll.